

iii. Third cause of action - failure to prevent/remedy discrimination and/or retaliation in violation of the FEHA

Here, because Defendant demonstrates that Plaintiff's discrimination retaliation claims have no merits, Plaintiff also cannot prevail on his claim that Defendant failed to prevent or investigate and remedy the discrimination and retaliation where no triable issues of facts exist as to any viable discrimination or retaliation claim. Therefore, summary adjudication of this cause of action is proper.

iv. Fourth cause of action – whistleblower retaliation (Lab. Code, § 1102.5(b))

To establish a prima facie case of retaliation a plaintiff must show: “(1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action; and (3) a causal link between the two.” (*Akers v. County of San Diego* (2002) 95 Cal.App.4th 1441, 1453.) The retaliatory motive, can be “proved by showing that that he employer was aware of the protected activities, that the employee engaged in protected activities, and that the adverse action following within a relatively short time thereafter.” (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.)

Here, Plaintiff's fourth cause of action under the whistleblower retaliation statute (Lab. Code, § 1102.5(b)) also fails for the reason that Plaintiff cannot establish the critical element that she engaged in a protected activity by disclosing information about a prohibited conduct. Labor Code section 1102.5, subdivision (b), provides that an employer may not “retaliate against an employee for disclosing information ... to [1] a government or law enforcement agency, [2] to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance ... if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute....” (Lab. Code, §1102.5(b).) Here, as set forth above, Plaintiff's complaint to Defendant's management did not disclose any information suggesting that Slocum's treatment of Plaintiff was unlawful or in violation of any law. As such, the fourth cause of action is subject to summary adjudication.

For the foregoing reasons, Defendant's motion for summary judgment is granted.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503225	PEREZ VS MERCURY INSURANCE COMPANY	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

GRANT Defendant' 'unopposed Request for Judicial Notice of the Court's 2/25/26 Minute Order (RJN Ex. "D".)

GRANT Defendants' Request for Judicial Notice of the *existence* of the court records and denial letter in Exs. "B", "C", "E" – "I", but not the *truth* of the contents.

SUSTAIN the demurrer without leave to amend.

REQUEST FOR JUDICIAL NOTICE

"[A]lthough the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 113.)

Defendants seek judicial notice of: 1) the Policy issued by CAIC to Plaintiffs (Ex. "A"); 2) CAIC's 6/4/25 denial letter (Ex. "B"); 3) 2/25/26 Tentative Ruling regarding the demurrer to the original Complaint (Ex. "C"); 4) 2/25/26 Minute Order (Ex. "D"); 5) Plaintiffs' Exhibit A to the opposition to the prior demurrer – CAIC's 10/15/24 letter to Ironside Claims confirming denial (Ex. "E"); 6) Plaintiffs' Exhibit B to the opposition to the prior demurrer – CAIC's 10/25/25 letter to Ironside Claims (Ex. "F"); 7) Plaintiffs' Exhibit C to the opposition to the prior demurrer – CAIC's 4/11/25 letter to Saman Shooshani (Ex. "G"); 8) Plaintiffs' Exhibit D to the opposition to the prior demurrer – CAIC's 5/9/25 letter to Saman Shooshani (Ex. "H"); and, 9) Plaintiffs' Exhibit E to the opposition to the prior demurrer – CAIC's 5/23/25 letter to Saman Shooshani (Ex. "I").

Defendants' cited authority to take judicial notice is Evidence Code § 452(h), which provides for judicial notice of: "Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." Defendants have not demonstrated that all of these items fit within this catch-all provision. Nonetheless, Plaintiffs do not oppose the request for judicial notice. And, the Policy (RJN Ex. "A") fits within the catch-all provision.

However, the Court can take judicial notice of the records in the pending action, or in any other action pending in the same court or any other court of record in the U.S. (Evid. Code § 452(d).) But, judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in other court files, as distinguished from the contents of documents filed therein. (*Fremont, supra.*; *Arce v. Kaiser Found. Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482-484.) Here, the Court can take judicial notice of the 2/25/26 Minute Order (RJN Ex. "D"). The Court can also take judicial notice of the *existence* of the opposition to the prior demurrer and its exhibits but, not the *truth* of the contents. (RJN Exs. "C", "E" – "I".)

The remaining exhibit is the 6/4/24 CAIC letter denying coverage. (see RJN Ex. "B".) Notably, Plaintiffs do not oppose the request for judicial notice of this document. Similar to the court records addressed immediately above, the Court can take judicial notice of the *existence* of the letter but, not the *truth* of its contents.

DEMURRER³

Statute of Limitations

In an action to recover policy benefits, the statute starts to run upon the insurer's unconditional denial of the insured's claim. (*State Farm Fire & Cas. Co. v. Sup. Ct. (Bolek)* (1989) 210 Cal.App.3d 604, 609.) Also, an insured who makes a timely claim is not penalized for the time it takes the insurer to investigate the claim. The statute of limitations is equitably tolled from the time the insured gives notice of a claim until the insurer denies coverage. (*Forman v. Chicago Title Ins. Co.* (1995) 32 Cal.App.4th 998, 1003; see also, *Prudential-LMI Comm'l Ins. v. Sup. Ct. (Lundberg)* (1990) 51 Cal.3d 674, 687 [policy provisions limiting time to sue also tolled.]) To stop the tolling period, the insurer must formally and unequivocally deny the claim in writing. Once it has done so, the limitations period begins to run again. (*Prudential-LMI Comm'l Ins.*, *supra.* at 678.)

Contractual agreements to shorten the limitations period are generally enforceable as long as the agreed upon limitation is reasonable and provides sufficient time to effectively pursue a judicial remedy and the triggering event for either the breach of contract or accrual of the right is immediate and obvious. (*Moreno v. Sanchez* (2003) 106 Cal. App. 4th 1415, 1430.) "California courts have afforded contracting parties considerable freedom to modify the length of a statute of limitations." (*Ibid.*) However, the shortened limitations period must not be unreasonable. (*Ibid.*) One-year contractual limitations provisions are generally held to be reasonable. (*Lawrence v. Western Mutual Ins. Co.* (1988) 204 Cal. App. 3d 565, 571.)

A one-year limitation period under a homeowner's insurance policy begins to run on the date of the inception of the loss but is tolled "from the time an insured gives notice of the damage to his insurer ... until coverage is denied." (*Prudential-LMI Commercial Ins. v. Superior Court* (1990) 51 Cal.3d 674, 693.) The California Supreme Court explained that equitable tolling eliminates unfair results in "progressive property damage cases" by, among other things, (1) not requiring the insured to file suit before the claim has been investigated and determined and (2) protecting the reasonable expectations of the insured by requiring the insurer to investigate the claim without later invoking a technical rule. (*Id.* at 692.) Likewise, the tolling ends when the claim is settled and paid. (*Marselis v. Allstate Ins. Co.* (2004) 121 Cal. App. 4th 122, 126.)

³ In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katlem* (1994) 8 Cal. 4th 666, 672). However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713). Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 606). If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318).

An insured's request for reconsideration of an insurance claim does not create an additional period of equitable tolling: "[O]nce an unequivocal denial has been made, the insured's later requests for reconsideration do not serve the purposes of and do not extend the period of equitable tolling." (*Singh v. Allstate Ins. Co.* (1998) 63 Cal.App.4th 135, 148.) The *Singh* court explained that the policies underlying the equitable tolling principle announced in *Prudential-LMI, supra*, cease to exist once the insurer has investigated the claim and denied coverage. (*Id.* at 145.) The Court observed that beginning a new period of equitable tolling based on a request for reconsideration would be anomalous and would allow claimants to extend the one-year limitation period at will with successive periods of tolling. (*Ibid.*) However, an insurer's reopening and reconsideration of a claim tolls the revived one-year period to bring suit. (*Ashou v. Liberty Mutual Fire Ins. Co.* (2006) 138 Cal.App.4th 748, 753.)

Here, CAIC Policy No. CAH0000371558 was issued to Plaintiffs, which Policy contains a one-year time limitation to file suit. The Policy specifically provides "No action can be brought against us unless there has been full compliance with all of the terms under Section I of this policy and the action is started within one year after the date of loss." (Dec.Kleiner ¶ 5; Request for Judicial Notice [RJN] Ex. "A".) The date of loss was 3/13/24 when Plaintiff, Perez, discovered the water leak under her kitchen sink. (FAC ¶ 15.) On 3/14/24, Plaintiff, Perez, contacted Emilio Uriate, owner/operator of All Professional Cleaning Systems (APCS) who inspected the property and found extensive water and damage in the kitchen beneath the cabinets. (*Id.* ¶ 16.)

Plaintiffs reported the damages to CAIC on 3/20/24. (*Id.* ¶ 17.) The same day, Uriate contacted Defendants' adjustor, Pedro Huerta, to explain the nature of the loss; Huerta requested additional information. (*Id.* ¶ 18.) On 3/21/24, Uriate emailed the requested information to Huerta. (*Id.* ¶ 19.) On 3/22/24, Defendants accepted coverage of the Claim, and Huerta expressly authorized Uriate to conduct the requested EMS and demolition. (*Id.* ¶ 20.) It is alleged that Plaintiffs hired APCS to perform the EMS/demolition authorized by Defendants. (*Id.* ¶ 21.) Plaintiffs allege that but for Defendants' acceptance of the Claim and approval of the EMS/demotion to be performed by APCS, the work would not have been performed so, Defendants are estopped from subsequently denying the Claim based on the EMS/demolition that was performed by APCS. (*Id.* ¶¶ 21, 46.) On 3/25/24, APCS began and completed the authorized work. (*Id.* ¶ 22.)

Then, on or around 6/4/24, after previously approving the Claim (3/22/24), CAIC's new adjuster, Sarah Biollin, sent a Claim Denial Letter to Plaintiffs, which made certain false claims. (*Id.* ¶¶ 28-34.) The FAC alleges the denial letter "falsely claims that excessive demolition was performed by APCS, which was not, and uses this falsehood as a basis to deny coverage for the Claim, of which it is not. (*Id.* ¶ 35.) On 10/15/24, Defendants confirm the 6/4/24 denial has been in reconsideration. (*Id.* ¶ 36.) This letter also makes certain false claims including damage to the kitchen cabinets occurred from a "long-term leak", among others. (*Id.* ¶¶ 37-40.) Plaintiffs hired a public adjuster, Chris Harrington with Ironside Claims, due to Defendants' bad faith denial. (*Id.* ¶ 41.)

On 10/25/24, Defendants confirm the Claim has been in reconsideration and has been entirely reevaluated. (*Id.* ¶ 42.) The FAC alleges that due to the Claim

reconsideration period, Defendants carefully re-examined the facts, Policy, and additional information including pre-demolition videos that depict the leak. (*Id.* ¶ 43.) Defendants assigned a new adjuster, Jerry Hansen, to the Claim. (*Id.* ¶ 44.) Defendants also conducted an additional inspection of the Property. (*Id.* ¶ 45.) The FAC alleges that in the 10/25/24 letter, Defendants concede the 6/4/24 denial was based on Defendants' inability "to make a definitive coverage determination due to the extent of demolition performed." (*Id.* ¶ 46.) However, on 3/22/24, Defendants expressly authorized the EMS/demolition that was performed. (*Ibid.*) The FAC alleges Plaintiffs' reasonable reliance on Defendants' approval of the EMS/demolition pursuant to their acceptance of coverage under the Claim. (*Id.* ¶ 47.)

On 11/14/24, Defendant's new adjuster, Jerry Hansen, inspected the property along with Plaintiff, Perez, and her adjuster, Chris Harrington. (*Id.* ¶ 48.) On 11/26/24, Defendants sent another Claim denial letter, which makes certain additional false claims regarding a long-term leak. (*Id.* ¶¶ 49-54.) On 4/11/25, Defendants reaffirm denial of the Claim after reviewing new evidence and reconsideration of existing evidence initially prompted by a 3/13/25 email from Plaintiffs' counsel. (*Id.* ¶ 55.) Thereafter, additional evidence was provided by Plaintiffs to Defendants on 4/27/25, which they confirmed receipt of and considered (5/9/25 letter), and issued a denial of the Claim. (*Id.* ¶ 56.) More new photographic evidence was provided on 5/14/25, 5/18/25, and 5/21/25, which Defendants confirmed receipt of and reviewed but, maintained denial of the Claim (5/23/25). (*Id.* ¶ 57.) Plaintiffs filed this lawsuit on 6/4/25.

CAIC concedes that the limitations period was tolled while CAIC investigated the claim from 3/20/24 until 6/4/24. However, CAIC asserts that when the claim was reported on 3/20/24, seven days had already run from 3/13/24 to 3/20/24. CAIC asserts that the time from 6/4/24 to 6/4/25 is 365 days. But, adding the seven days to that time period means total elapsed time from date of loss to filing of this lawsuit was 372 days. Thus, CAIC asserts that Plaintiffs' lawsuit was filed seven days too late, and this entire action is time-barred.

In response, Plaintiffs make the same arguments as made in the prior demurrer. They argue that there were a series of reconsideration/reinvestigation periods that occurred in which the limitations period was tolled. There is no dispute that the limitations period was tolled from 3/20/24 to 6/4/24 during the time in which CAIC was investigating the claim until it closed the claim on 6/4/24.

Plaintiffs assert that an additional tolling period occurred from 6/4/24 to 10/15/24 based on the 10/15/24 letter indicating that Defendants reconsidered the denial by reexamining the facts, the Policy, and additional video information. (FAC ¶ 43.) They assert that a subsequent 10/25/24 letter states denial of coverage on 6/4/24 was based on Defendants' inability "to make a definitive coverage determination due to the extent of demolition performed." (*Id.* ¶ 46.) Plaintiffs argue that Defendants are estopped from asserting a denial based on EMS and demolition that they authorized, and that Plaintiffs relied on as an indication of coverage. (*Id.* ¶¶ 21, 46.)

Plaintiffs also assert that a 4/11/25 letter from Defendants reaffirmed denial of the claim after reviewing new evidence and reconsideration of existing evidence prompted

by Plaintiffs 'counsel's 3/13/25 email. (*Id.* ¶ 55.) Thus, they assert tolling also occurred from 3/13/25 to 4/11/25.

Plaintiffs further assert that on 4/27/25, Plaintiffs provided new evidence to Defendants. (*Id.* ¶ 56.) Defendants confirmed receipt of the additional information on 5/9/25 and issued a new denial of the Claim. (*Ibid.*) They assert tolling also occurred from 4/27/25 to 5/9/25.

Plaintiffs submitted new evidence by email on 5/14/25, 5/18/25, and 5/21/25, which Defendants confirmed receipt of on 5/23/25. (*Id.* ¶ 57.) Plaintiffs argue that based on these facts, Defendants cannot establish that no reconsideration occurred where after the initial denial they: 1) assigned a new adjustor to the Claim; 2) conducted a re-inspection of the property; 3) conducted additional reviews of the Claim; and 4) analyzed new evidence in support of the claim. (*Ashou, supra.* at 138 Cal.App.4th 748, 756-757, 762-763.) In *Ashou*, the Court addressed the elements of equitable tolling.⁴ It also distinguished *Singh* as a case that stands for the proposition that there cannot be a "second period of equitable tolling." (*Id.* at 758.)

Plaintiffs argue that this case is like *Ashou*, and unlike, *Singh, supra.* because in *Singh*, the Court found that a mere *request* for reconsideration does not automatically reopen the claim nor does it require the insurer to respond. There, the *Singh* Court noted that the insurer reiterated its original denial and took no affirmative steps to reinvestigate the claim. As such, Plaintiffs argue that *Singh* is factually distinguishable from this case because here (as in *Ashou*), the insurer conducted additional investigation while also reserving its right to assert a limitations defense. However, Plaintiffs 'argument is somewhat misleading because in *Ashou*, due to an unclear record, the Court reversed and remanded the trial court's decision to sustain the demurrer *with leave to amend*. Here, Plaintiffs again assert that any defects can be cured with factual allegations of Defendants 'reinvestigation and reconsideration of the Claim. Notably, while adding some additional facts in the FAC, Plaintiffs have not alleged a precise date that CAIC "agreed" to reconsider or reopen the Claim.

Moreover, Plaintiffs argue that Defendants are estopped from denying the Claim where they authorized EMS/demolition, which work was performed by APCS and was explicitly approved by Defendants. Plaintiffs take the position that this is an issue for the trier of fact particularly since "[t]ime limitations in the Policy do not apply to causes of action arising from misconduct that occurred after the Claim has been accepted by a Defendant." (*Lawrence v. Western Mutual Ins. Co.* (1988) 204 Cal.App.3d 565, 575.)

However, Defendants take the position in reply that other than the initial tolling period from 3/20/24 until 6/4/24, no additional tolling occurred or was authorized because while CAIC agreed to review additional information, *it never actually reopened the Claim*. This argument is consistent with the *Ashou* Court's decision. In *Ashou*, the

⁴ The elements to establish an equitable estoppel are: 1) the party to be estopped must know the facts; 2) the party must intend their conduct be acted on, or must act with the right to believe it was so intended; 3) the party asserting estoppel must be ignorant of the true state of the facts; and 4) they must rely on the conduct to their injury. (see *DRG/Beverly Hills, Ltd. v. Chopstix Dim Sum Café & Takeout III, Ltd.* (1994) 30 Cal.App.4th 54, 59.)

Court remanded the demurrer to allow plaintiff “to allege, if she truthfully can do so, a precise date that Liberty Mutual agreed to reconsider her claim that would render her complaint timely under the doctrine of equitable tolling.” (*Ashou, supra.* at 768.)

Defendants also argue that even if CAIC incorrectly denied the Claim, the applicable limitations period still applies. And, without an express agreement to reopen a claim, an insurer’s statement of willingness to reconsider a denial does not toll the statute of limitations. (see *Singh, supra.* at 63 Cal.App.4th 135, 144; *Tran v. Safeco Ins. Co. of America* 2025 WL 3305848 *3 [in the insurance context, the limitations period is generally not tolled for a second time during the period of reconsideration but, it may be tolled where an insurer expressly agreed to reopen the claim]; *Vitug v. AXA Equitable Life Ins. Co.* 2020 WL 6472673 *2 [same.]])

Here, Plaintiffs have **still** not established that Defendants *actually reopened* their claim. The letters from Defendants consistently reiterate that the coverage decision on the Claim remains unchanged and that the file remains closed. (FAC ¶¶ RJN, Exs. “B”, “E” – “I”.) Notably, the Court in *Tran* reasoned that once “the insured has already been denied the claim prior to the request for reconsideration, there are at least some grounds to sue the carrier.” (*Tran, supra.*) At the prior demurrer hearing, the Court gave Plaintiffs the opportunity to allege a precise date that CAIC *reopened* their Claim, if they could truthfully do so. Otherwise, the Claim is time-barred. Plaintiffs’ FAC fails to make this critical allegation. Thus, the demurrer is sustained, without leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2503348	SORIANO VS THE 0312 RAMONA APTS, L.P.	MOTION TO COMPEL: FURTHER ANSWERS/RESPONSES TO INTERROGATORIES SPECIAL INTERROGATORIES

Tentative Ruling: Grant. Reasonable Sanctions.

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motion is accompanied by the declaration of Attorney Elisabeth Herrmann who sent meet and confer correspondence to opposing counsel. Attorney Hermann attempted to utilize the court’s IDC process and ultimately filed the instant motions to preserve Defendant’s rights. This satisfies the meet and confer requirements.

I. MTC Further Responses to Special Interrogatories – Esmeralda Bahena Franco

Defendant Pro Management Company XIV, Inc. moves to compel Plaintiff Esmeralda Bahena Franco to produce further substantive verified responses to Special Interrogatories, Nos. 9, 12, 15, 18, 21, 24, 27, and 30. Plaintiff responded to the discovery after responses were initially due. Failing to respond within the time limit waives most objections to interrogatories, including claims of privilege and work product